

IN THE HOUSE OF REPRESENTATIVES

HOUSE JOINT MEMORIAL NO. 19

BY STATE AFFAIRS COMMITTEE

A JOINT MEMORIAL

TO THE SENATE AND THE HOUSE OF REPRESENTATIVES OF THE UNITED STATES IN CONGRESS ASSEMBLED AND TO THE CONGRESSIONAL DELEGATION REPRESENTING THE STATE OF IDAHO IN THE CONGRESS OF THE UNITED STATES.

We, your Memorialists, the House of Representatives and the Senate of the State of Idaho assembled in the Second Regular Session of the Sixty-eighth Idaho Legislature, do hereby respectfully represent that:

WHEREAS, the Tenth Amendment to the United States Constitution reserves to the states powers not delegated to the federal government, and education is not enumerated as a responsibility of the federal government; and

WHEREAS, the U.S. Department of Education's creation in 1980 has led to significant federal overreach in education through burdensome regulations and one-size-fits-all mandates, many left unfunded despite the department's annual budget of \$60 billion; and

WHEREAS, as the least regulated state in the nation, Idaho would welcome the opportunity to extend its red tape reduction efforts to the field of public education where it is desperately needed; and

WHEREAS, states and local communities possess unique knowledge of their students' educational needs and are best positioned to develop the curriculum and policies that reflect their values and priorities; and

WHEREAS, President Trump has publicly expressed a desire to eliminate the U.S. Department of Education and rightfully put the states back in charge of education; and

WHEREAS, the elimination of the U.S. Department of Education is not only a constitutional necessity, but will also cause taxpayer dollars to be spent more efficiently and lead to better student outcomes.

NOW, THEREFORE, BE IT RESOLVED by the members of the Second Regular Session of the Sixty-eighth Idaho Legislature, the House of Representatives and the Senate concurring therein, that the Legislature supports federal efforts to eliminate the U.S. Department of Education and urges the United States Congress to fully cooperate with these efforts.

BE IT FURTHER RESOLVED that the Chief Clerk of the House of Representatives be, and she is hereby authorized and directed to forward a copy of this Memorial to the President of the Senate and the Speaker of the House of Representatives of Congress and to the congressional delegation representing the State of Idaho in the Congress of the United States.